

Tentative Rulings
May 18, 2026
Department 44
2:30 p.m.

*****IMPORTANT – PLEASE READ*****

The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website).

CONSERVATORSHIPS

CONSERVATORSHIP OF DARIN ANGELL-MURRAY

CASE NUMBER: 23PC-0032005

This matter is on calendar for Biennial Review. The Court has reviewed the memorandum from the Court Investigator received May 12, 2026, which states that a proper review could not be completed. The Court intends to suspend the Conservator's powers pending further order of the Court. **An appearance is necessary on today's calendar to discuss status of the conservatorship.**

CONSERVATORSHIP OF SAMANTHA BARNES

CASE NUMBER: 25PC-0032767

This matter is on calendar for Annual Review and for hearing on Order to Show Cause issued to the Conservator, Jennifer Moser, for failure to appear on March 30, 2026, and failure to file an Annual Status Review. The Court Investigator and Public Defender have been unable to contact the Conservator regarding the review. A declaration was filed by the Conservator on May 12, 2026, in response to the Order to Show Cause. **An appearance is necessary on today's calendar to address the Order to Show Cause and to discuss the status of the conservatorship. Failure to appear will result in the imposition of Monetary Sanctions in the amount of \$500.00 and the issuance of an Order to Show Cause re: Removal of the Conservator.**

CONSERVATORSHIP OF JASON BURDETT

CASE NUMBER: CVPG09-0026137

This matter is on calendar for reappointment of the Public Defender. The Court has reviewed the memorandum from the Court Investigator received on April 20, 2026, which states the Conservator has passed away and in the care of his sister, Kimberly Bentley. The memorandum states that Adult Protective Services does not have any concerns for the Conservatee in the care of his sister. **An appearance is necessary on today's calendar to discuss status of the conservatorship.**

CONSERVATORSHIP OF WAYNE DANYOW

CASE NUMBER: 26PC-0033235

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and Proof of Service of Notice of Filing of Inventory and Appraisal. None of the required documents have been filed. The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** to confirm filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and Proof of Service of Notice of Filing of Inventory and Appraisal. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF KAIDEE LOVE

CASE NUMBER: 25PC-0033193

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights and Conservatorship Care Plan. All documents have been filed and are accepted by the Court. The Court confirms the future date of March 8, 2027, for Annual Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN MCKENZIE

CASE NUMBER: CVPG92-0019491

This matter is on calendar for status of distribution of estate assets and to confirm filing of Receipts and a Petition for Final Discharge. No further documents have been filed to address distribution of the estate. **An appearance is necessary on today's calendar.**

CONSERVATORSHIP OF AVERY MILLER

CASE NUMBER: 25PC-0033150

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights and Conservatorship Care Plan. All documents have been filed and are accepted by the Court. The Court confirms the future date of March 15, 2027, for Annual Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF SEAN MURRAY

CASE NUMBER: 25PC-0033169

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights and Conservatorship Care Plan. All documents have been filed and are accepted by the Court. The Court confirms the future date of March 15, 2027, for Annual Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF MARY WILSON

CASE NUMBER: CVPG12-0027292

This matter is on calendar for status of distribution of estate assets and to confirm filing of Receipts and a Petition for Final Discharge. No further documents have been filed to address distribution of the estate. **An appearance is necessary on today's calendar.**

ESTATES

ESTATE OF SHERRY BARRET

CASE NUMBER: 26PB-0033343

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has not been properly noticed. The proof of service filed on April 16, 2026, is incomplete as to the place of mailing. Proper proof of publication has been filed. The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for Probate of Will. Petitioner is required to file and serve a new Notice of Petition to Administer Estate for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA BIRKLAND

CASE NUMBER: 24PB-0032328

This matter is on calendar for further proceedings on a Petition for Determination of Ownership of Real Property and for Orders Preserving Property Pending Hearing. **An appearance is necessary on today's calendar.**

ESTATE OF JILLIAN BROOKS

CASE NUMBER: 26PB-0033315

This matter is on calendar for hearing on a Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is incomplete as to attachment DE-300, as required by item 8. Additionally, attachment 11 fails to state sufficient facts that show the property was decedent's primary residence. The matter is continued to **Monday, June 29, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition to Determine Succession to Primary Residence. An amended Petition is required to be filed to address the issues raised above. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF ROBERT BROWN

CASE NUMBER: 24PB-0032470

This matter is on calendar for further proceedings regarding the First and Final Account and Report of Administrator and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. An objection to the Petition was previously filed by Joshua Roose regarding the allowance of creditor's claim filed on December 17, 2025. An amended Allowance or Rejection of Creditor's Claim has been filed which sufficiently addresses the issues raised on April 6, 2026. It is unclear whether Mr. Roose continues to object to the Petition in light of the amended claim. Absent any further objections, the Court intends to grant the Petition. **An appearance is necessary on today's calendar.**

ESTATE OF GARY CASCINO

CASE NUMBER: 25PB-0033020

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Court notes the Inventory and Appraisal filed on December 18, 2025, was not accepted by the Court. An amended Inventory and Appraisal has not been filed. No Status Report has been filed as ordered on March 23, 2026. This matter is continued to **Monday, June 29, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the

continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of November 23, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF RUTH COE

CASE NUMBER: 26PB-0033312

This matter is on calendar for hearing on a Petition for Probate of Will. The will purports to devise the decedent's estate to the trustee of a trust. The trustee of the trust has not been identified in item 8 of the Petition. Due to the defect, the Court is unable to determine if proper notice has been filed. No proof of publication has been filed. The matter is continued to **Monday, June 29, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for Probate of Will. An amended Petition is required to be filed to address the issue raised above. A new Notice of Petition is required to be timely filed and served for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. Proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF STEVE CORTEZ

CASE NUMBER: 24PB-0032421

This matter is on calendar for confirmation of filing the Inventory and Appraisal and confirmation of deposit of funds into blocked account. The Inventory and Appraisal has not been filed. No proof of deposit of funds into blocked account has been filed. A Status Report has been filed which states additional time is needed before the Inventory and Appraisal can be filed and the funds deposited into a blocked account. This matter is continued to **Monday, August 17, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal and confirmation of deposit of funds into blocked account. If the documents cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the documents can be filed. Failure to file either the confirmation of deposit and Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file proof of deposit of funds into blocked account, the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 28, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF LOUISA DEVAN

CASE NUMBER: 24PB-0032517

This matter is on calendar for Status of Administration. The has been continued several times to allow additional time for a successor Personal Representative to be appointed and the estate administration finalized. A Petition to appoint a successor Personal Representative has not been filed. A properly noticed Status Report has been filed stating that additional time is needed before a successor Personal Representative can be appointed and the estate administration can be finalized. The matter is continued to **Monday, July 20, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Appointment of Successor Personal Representative cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate

administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition is noticed for a different date, the Court will vacate the July 20, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF BILLY DURBIN

CASE NUMBER: 25PB-0033029

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed as ordered on April 13, 2026. This matter is continued to **Monday, June 29, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 14, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF SHIRLEY GERHARDSON

CASE NUMBER: 25PB-0033127

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on April 29, 2026, is accepted by the Court. The Court notes the future date of December 14, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES HAYES

CASE NUMBER: 22PB-0031502

This matter is on calendar for status of settlement. A Notice of Settlement was filed on November 12, 2025. **An appearance is necessary on today's calendar.**

ESTATE OF ROBERT HAZEL

CASE NUMBER: 24PB-0032573

This matter is on calendar for hearing on the Second Amended First and Final Account and Report of Administrator and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition requests that Robbin's share of the estate be reduced by the total amount of mortgage payments made on the home from November 2023 to November 2024. The Court previously noted that the estate is entitled to the fair rental value for that time period. No evidence has been provided to support that the fair rental value of the home is the same amount as the mortgage payments (\$2,100 per month for a total of \$25,200). The proposed distribution is incorrect. The decedent has three living children and one pre-deceased child. The pre-deceased child has three living children. Pursuant to Probate Code Section 240, "the property shall be divided into as many equal shares as there are living members of the nearest generation of issue then living and deceased members of that generation who leave issue then living, each living member of the nearest generation of issue then living receiving one share and the share of each deceased member of that generation who leaves issue then living being divided in the same manner among his or her then living issue." As a result, John, Robbin, and James are each entitled to one-quarter share of the estate. Olivia, Michialla, and Michael are entitled to their mother's one-quarter share of the estate, thus each acquiring a one-twelfth share. Additionally, distribution of the amount reduced from Robbin's share for the fair rental value of the home is incorrect. The tentative ruling of March 2, 2026, stated, "Ms. Lagoria's share

shall be reduced by the fair rental value of the home for the stated time period and distributed to the remaining heirs accordingly.” The remaining heirs are John, James, Olivia, Michialla, and Michael. John and James are each entitled to one-third the amount of the fair rental value. Olivia, Michialla, and Michael are to be entitled to their mother’s one-third share of the fair rental value equally, resulting in a one-ninth share to each. Consequently, the proposed future distribution is also incorrect. John, Robbin, and James entitled to 25% interest and Olivia, Michialla, and Michael are entitled to a 8.33% interest.

The matter is continued to **Monday, July 13, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the second amended First and Final Account of Administrator and Petition for Final Distribution. A third amended Petition is required to be filed to address the issues raised above. A new Notice of Hearing is required to be filed and served for the continued hearing date, along with a copy of the third amended Petition, on all parties entitled to notice. **No appearance is necessary on today’s calendar.**

ESTATE OF LYNDA HENSLEY

CASE NUMBER: 24PB-0032560

This matter is on calendar for further proceedings on a Petition for Final Distribution on Waiver of Accounting. A supplement has been filed which sufficiently addresses the issues raised on April 13, 2026. The Court previously determined the matter to be properly noticed. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed Order has not been submitted in compliance with Local Rule 15.06. Petitioner shall prepare the order. This matter is set for **Monday, July 6, 2026, at 2:30 p.m. in Department 44** to confirm the filing an Order on the Petition for Final Distribution, Receipts, and a Petition for Final Discharge. **No appearance is necessary on today’s calendar.**

ESTATE OF PAUL HOLLAND SR.

CASE NUMBER: 23PB-0032204

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court’s order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the July 6, 2026, date. **No appearance is necessary on today’s calendar.**

ESTATE OF CAROLINE HYATT

CASE NUMBER: 24PB-0032304

This matter is on calendar for Status of Administration. The Court notes a Petition for Final Distribution was previously filed on February 2, 2026; however, it was subsequently stricken for failure to pay the required filing fee. A new Petition for Final Distribution has been filed. No Status Report has been filed as ordered on April 6, 2026. The matter is continued to **Monday, July 13, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to

timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the July 6, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF JOHN JOHNSON

CASE NUMBER: 24PB-0032590

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Status of Administration. An Inventory and Appraisal has not been filed. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on February 23, 2026, and April 6, 2026. The Court will issue an Order to Show Cause Re: Monetary Sanctions of \$250.00 to the Personal Representative and Counsel for failure to timely file the Inventory and Appraisal, failure to timely close the estate administration, and failure to file a Status Report as ordered on February 23, 2026, and April 6, 2026. The hearing on the Order to Show Cause is set for **Monday, July 27, 2026, at 2:30 p.m. in Department 44.** The clerk is instructed to prepare a separate Order to Show Cause. Today's hearing is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal and Status of Administration. The Personal Representative is **ORDERED** to file a status report at least five days prior to the hearing date to inform the Court of the status of the estate administration. Failure to do so will result in the imposition of Monetary Sanctions and may result in the issuance of an Order to Show Cause Re: Removal of the Personal Representative. **No appearance is necessary on today's calendar.**

ESTATE OF KENNETH KEFFER

CASE NUMBER: 26PB-0033382

This matter is on calendar for hearing on a Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

ESTATE OF DAVID KIBLER

CASE NUMBER: 25PB-0032971

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on April 8, 2026, is accepted by the Court. The Court notes the future date of July 27, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF TIMOTHY KOBE

CASE NUMBER: 26PB-0033352

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has not been properly noticed. There is no proof of service for John Owen Romano Kobe. Additionally, the Court notes several heirs reside outside of the country. It is unclear based on the Petition whether Probate Code Section 8113 is applicable. Proof of proper publication has been filed. The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for Probate of Will. Petitioner is required to timely file and serve a new Notice of Hearing for the continued hearing date. If Probate Code Section 8113 is applicable, proper notice must be provided. **No appearance is necessary on today's calendar.**

ESTATE OF STANLEY LINGENFELTER

CASE NUMBER: 25PB-0032867

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. Some receipts have been filed. No Petition for Final Discharge has been submitted. A Status Report has been filed which states The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF SUSAN LUISEN

CASE NUMBER: 25PB-0032928

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. No receipts have been filed. No Petition for Final Discharge has been submitted. A Status Report has been filed which states additional time is needed before the documents can be filed. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF LEONARD MALITZ

CASE NUMBER: CVPB22-0031410

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed stating that the Personal Representative has submitted a Supplemental Inventory and Appraisal to the probate referee and that a claim has been filed on the bond. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for Status of Administration and for setting of a hearing on the bond claim. **No appearance is necessary on today's calendar.**

ESTATE OF SLOAN MCMAHON

CASE NUMBER: 25PB-0032813

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Status of Administration. A Final Inventory and Appraisal has not been filed. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed stating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, August 24, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Final Inventory and Appraisal, failure to timely close the estate administration, and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the August 24, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF MARY MONTALVO

CASE NUMBER: 25PB-0032906

This matter is on calendar for further proceedings regarding status of stipulation and possible resetting of a contested hearing. At the last hearing, the parties stated that they had come to an agreement,

however the agreement has since broken down. The matter was continued to allow Mr. Moody to obtain counsel. **An appearance is necessary on today's calendar.**

ESTATE OF HAROLD MONTGOMERY JR.

CASE NUMBER: 23PB-0032233

This matter is on calendar for hearing on a Successor Petition for Probate of Will. The will purports to give the entirety of the estate to the trustee of a trust. The Court notes the previous trustee was the Personal Representative of the estate and has passed away. Item 8 fails to identify the successor trustee of the trust. Due to the defect, the Court is unable to determine if proper notice has been provided and the requirement of a bond properly waived. The matter is continued to **Monday, June 29, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Probate of Will. Petitioner is required to file an amended Petition to address the issue raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA NIERENBERG

CASE NUMBER: 25PB-0032814

This matter is on calendar for hearing on a Sixth Amended Petition to Determine Succession to Primary Residence. The Court notes the Petition was revised by the Judicial Council on April 28, 2025, for mandatory use. Petitioner has used the prior version of form DE-310, "Petition to Determine Succession to Real Property." The Declaration filed by Counsel on April 6, 2026, requests that the Petition be determined under the prior version of Probate Code Sections 13150-13154. Petitioner contends that because the decedent died and the Petition was filed prior the revision of Probate Code Sections 13150-13154, the prior versions of the statutes apply. The prior versions do not require that the real property be the decedent's primary residence. Probate Code Sections 13150-13154 were revised pursuant to AB 2016 and became effective January 1, 2025 (not April 1, 2025).

Counsel further argues that Probate Code Section 13150(f) specifies that the applicable statutory framework depends on the date of death of the decedent. There is no language in the statutes limiting their application to the date of death. Probate Code Section 3(c) provides that, "a new law applies on the operative date to all matters governed by the new law, regardless of whether an event occurred or circumstance existed before, on, or after the operative date, including, but not limited to, creation of a fiduciary relationship, death of a person, commencement of a proceeding, making of an order, or taking of an action." Subsection (d) goes on to specify that:

"If a petition, account, report, inventory, appraisal, or other document or paper is filed before the operative date, the contents, execution, and notice thereof are governed by the old law and not by the new law; but any subsequent proceedings taken after the operative date concerning the petition, account, report, inventory, appraisal, or other document or paper, including an objection or response, a hearing, an order, or other matter relating thereto is governed by the new law and not by the old law."

The Sections apply as of the effective date, despite that the Judicial Council did not publish the revised form DE-310 until April 28, 2025. The original Petition in this case was filed on February 14, 2025, (not March 11, 2025), therefore the revised statutes applied at the time of filing.

This matter has been continued ten times to allow Petitioner to provide sufficient facts to show that the real property was the decedent's primary residence as required by Probate Code Section 13152. The

Petition states that, "Linda did not have any other residence outside of 17829 Shawn Drive. This was her primary residence. She was staying in North Carolina with family. There was no other residence she owned." The Court cannot assume that because the decedent was staying with family and owned no other residence means that the subject property was her primary residence. No facts have been provided to support the assertion that the real property was her primary residence. The Petition is **DENIED** without prejudice. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

ESTATE OF SUSAN PALMER

CASE NUMBER: 24PB-0032564

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Status of Administration. The Second Partial and Final Inventory and Appraisal filed on January 29, 2026, is accepted by the Court, despite that item 5 and the statement about the bond are incomplete. Item 5 was properly addressed on the previous Inventory and Appraisal, no additional real property has been identified, and the requirement of a bond has been waived, therefore the Court will overlook the defects.

No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed stating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, August 24, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the August 24, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF DONALD RHODES

CASE NUMBER: 25PB-0033171

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. This matter is continued to **Monday, July 20, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of January 11, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF TERESA ROTH-BURTON

CASE NUMBER: 25PB-0033183

This matter is on calendar for further proceedings on a second amended Petition for Probate of Lost Will. The Court previously found the matter to be properly noticed with proof of service on file. An objection was filed by Daniel Burton. The original will has been lodged. Proper proof of publication has not been filed to address the issues previously raised on April 6, 2026. The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the second

amended Petition for Probate of Lost Will. Proof of proper publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF DIANE RUPPERT

CASE NUMBER: 25PB-0033170

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. This matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of January 11, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF DONALD SELVEY

CASE NUMBER: CVPB17-0029255

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed stating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, July 20, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the July 20, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF KEITH SHANNON

CASE NUMBER: 26PB-0033336

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has not been properly noticed. Proof of proper publication has been filed. There is no proof of service for any parties entitled to notice. The proof of service filed May 12, 2026, fails to provide notice to the two intestate heirs listed in the Petition. The requirement of a bond has not been properly waived. Judicial Council form DE-142/DE-111(A-3e) was adopted for mandatory use effective as revised on July 1, 2017. This form is required to be used. The Court notes item 8 fails to identify the relationship of each person to the decedent; however, the attached death certificate clarifies the two parties listed are the decedent's parents. The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for Letters of Administration. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF ALAN SHUFELBERGER

CASE NUMBER: 23PB-0032231

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. No receipts have been filed. No Petition for Final Discharge has been submitted. A Status Report has been filed stating

additional time is needed before the documents can be filed. The matter is continued to **Monday, July 20, 2026, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF ANTONIO SILVA

CASE NUMBER: 23PB-0032237

This matter is on calendar for hearing on the amended Petition for First and Final Account, Waiver of Account, and Final Distribution. The matter has not been properly noticed. Petitioner failed to provide notice by way of Judicial Council form DE-120, adopted for mandatory use January 1, 2020. The Court notes the amended Petition states a waiver of account by Brian Laustrup has been included, however it is not attached. As the waiver of account is attached to the original Petition filed on March 20, 2026, the defect may be overlooked. The matter is continued to **Monday, June 15, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the amended Petition for First and Final Account, Waiver of Account, and Final Distribution. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition and supporting declarations, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF CLEO SMITH

CASE NUMBER: 26PB-0033328

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed with proof of service on file. Proper proof of publication has been filed. No objections have been raised. The paperwork appears to be in order, with the exception that the Petition is incomplete as to item 3(a), the date and place of death of the decedent. The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for Letters of Administration. An amended Petition is required to be filed to address the issue raised above. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF CLARENCE TAYLOR

CASE NUMBER: 25PB-0032856

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. No receipts have been filed. No Petition for Final Discharge has been submitted. The matter is continued to **Monday, June 15, 2026, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF THEODORE YODER

CASE NUMBER: CVPB18-0029522

This matter is on calendar for trial setting. **An appearance is necessary on today's calendar.**

TRUSTS

IN RE: GEORGE E. HERRICK AND M. GLORIA HERRICK 2003 REVOCABLE TRUST DATED JULY 29, 2003

CASE NUMBER: CVPB20-0030695

This matter is on calendar for hearing on a Notice of Motion and Motion to be Relieved as Counsel. The motion was filed by Jacob Wright, counsel for Les Herrick. The matter has not been properly noticed. There is no proof of service for Les Herrick. Additionally, notice on the remaining parties was not timely served. The Court notes the Declaration in Support does not reflect accurate future hearing date information under item 4. The Motion is **DENIED** without prejudice. The Court notes the future date of July 6, 2026, for resetting of settlement conference regarding status of settlement. **No appearance is necessary on today's calendar.**

IN RE: JAMES MICHAEL MURRAY 2016 TRUST

CASE NUMBER: 25PB-0033054

This matter is on calendar for Status of Administration and status of the filing of an Objection. The Court previously granted the Petition to Contest Trust Based on Omitted Spouse Claim. The Court subsequently granted a Stipulation and Order setting aside the order granting the Petition and allowed for the filing of an objection. A formal objection and answer to the Petition has been filed by Anna Tavalero. **An appearance is necessary on today's calendar for setting of a contested hearing.**

IN RE: KENNETH C. DUKE REVOCABLE LIVING TRUST

CASE NUMBER: 25PB-0033104

This matter is on calendar for further proceedings on an amended Petition to Remove Successor Trustee, Appoint Alternate Successor Trustee, for Accounting and Inventory, and Other Relief. An objection was previously filed. At the last hearing, the Court ordered an accounting to be filed and served. This matter is also on calendar for hearing on a Petition for Approval of Accounting, Attorney Fees, Reimbursement to Trustee, and Distribution of Trust Assets. The matter has been properly noticed with proof of service on file. No objections have been raised. The Trust provided for equal distribution of the residue of the estate to Kenneth Duke, Melissa Allen, and Brandi Duke-Foster. The Petition indicates that distribution was not made equally, but that Mr. Duke consented to the distribution. No consent has been filed as stated in item 30 of the Petition.

The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for further proceedings on the amended Petition to Remove Successor Trustee, Appoint Alternate Successor Trustee, for Accounting and Inventory, and Other Relief and the Petition for Approval of Accounting, Attorney Fees, Reimbursement to Trustee, and Distribution of Trust Assets. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date on all parties entitled to notice. A consent to the distribution is required to be filed. **No appearance is necessary on today's calendar.**

IN RE: ROBERT HOMER FOX REVOCABLE TRUST DATED JULY 22, 2020

CASE NUMBER: 25PB-0033140

This matter is on calendar for further proceedings on the First Report and Accounting and possible setting of a contested hearing. This matter is being heard concurrently with case 33164. **An appearance is necessary on today's calendar.**

IN RE: THE ROBERT H. FOX III SUPPORT TRUST

CASE NUMBER: 25PB-0033164

This matter is on calendar for further proceedings on the First Report and Accounting and possible setting of a contested hearing. This case is being heard concurrently with case 33140. **An appearance is necessary on today's calendar.**

**IN RE THE STUART MARVIN OLIVER REVOCABLE TRUST DATED
FEBRUARY 20, 1996**

CASE NUMBER: CVPB19-0029976

This matter is on calendar for further proceedings regarding status of settlement. **An appearance is necessary on today's calendar.**